

Pier and Harbour Order (Falmouth) Confirmation Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. xii

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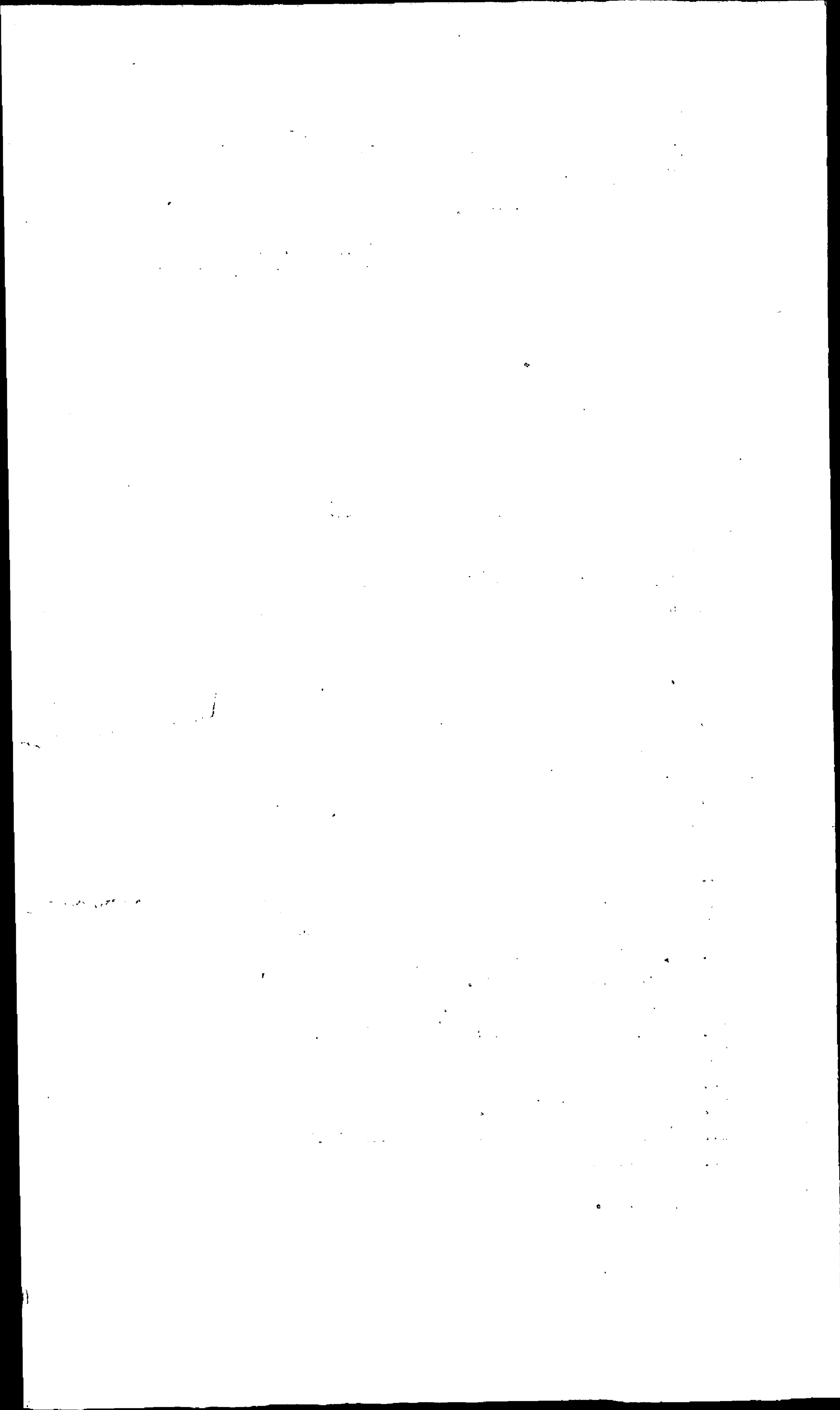
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CHAPTER xii

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Falmouth.

[9th July 1952.]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order which as amended is set out in the schedule to this Act shall be and the same is hereby confirmed and all of the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order (Falmouth) Confirmation Act 1952.

SCHEDULE

FALMOUTH PIERS

Provisional Order to amend the provisions of the Falmouth Piers Order 1878 and the Falmouth Corporation Quays Order 1902 relating to the application of rates revenue and income received under those Orders to authorise the Falmouth Corporation to demand and take increased rates dues and duties to provide for the revision of rates dues and duties to authorise the Corporation to borrow further moneys and for other purposes.

Short and
collective titles.

1.—(1) This Order may be cited as the Falmouth Piers Order 1952.

(2) The Falmouth Piers Order 1878 the Falmouth Corporation Quays Order 1902 and this Order may be cited together as the Falmouth Piers Orders 1878 to 1952.

Commencement.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

Interpretation.

3. In this Order unless the context otherwise requires—

“ Authorised rates ” means the rates which the Corporation are for the time being authorised to levy demand and recover in pursuance of (a) the Order of 1878 and the Order of 1902 as amended by this Order or (b) this Order or (c) any order made under section 7 (Revision of rates) of this Order;

“ The borough ” means the borough of Falmouth;

“ The Corporation ” means the mayor aldermen and burgesses of the borough;

“ The pier ” means the piers quays and other works belonging or leased to the Corporation and the land buildings plant property and conveniences connected therewith or any part thereof as the case may be;

“ The general rate fund ” means the general rate fund of the borough;

“ The Harbours Clauses Act 1847 ” means the Harbours Docks and Piers Clauses Act 1847;

“ The Minister ” means the Minister of Transport;

“ The Order of 1878 ” and “ the Order of 1902 ” mean respectively the Falmouth Piers Order 1878 and the Falmouth Corporation Quays Order 1902;

“ Seaplane ” includes a flying boat and any other aircraft designed to manoeuvre on the water;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture or debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or securities of the Corporation;

“ The town clerk ” means the town clerk of the borough;

“ The undertaking ” means and includes the undertaking carried on by the Corporation at and in connection with the pier;

“ Vessel ” includes a seaplane on the surface of the water.

4.—(1) In the application to this Order of the Harbours Clauses Act 1847 the expression “ the Special Act ” shall mean this Order and the word “ vessel ” shall include a seaplane on the surface of the water: Application of Harbours Clauses Act 1847.

Provided that nothing in the Harbours Clauses Act 1847 or this Order shall in any circumstances require or authorise the harbour-master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

(2) Sections 12 and 13 16 to 19 25 26 30 and 84 to 90 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

5. The Corporation shall be the undertakers for carrying this Order into execution and are in this Order referred to as the Corporation. Undertakers.

6. The First Schedule to the Order of 1902 shall be and the same is hereby repealed and the schedule to this Order is hereby substituted in place of the first-mentioned schedule and the Corporation may (subject to the provisions of the Order of 1878 and the Order of 1902) demand receive and recover the rates specified in the schedule to this Order from the persons liable for payment of the same and all the provisions of section 6 of the Order of 1878 and of sections 18 and 20 of the Order of 1902 except in so far as any of those provisions have been repealed by this Order shall be read and have effect as if the schedule to this Order had formed part of— Rates.

(a) the Order of 1878 and had been the schedule referred to in that Order; and

(b) the Order of 1902 and had been the First Schedule referred to in that Order.

7.—(1) If it is represented by application in writing to the Minister— Revision of rates.

(a) by any chamber of commerce or shipping or any representative body of traders or shipowners; or

- (b) by any person who in the opinion of the Minister has a substantial interest in the trade of the pier and is a proper person to make an application; or
- (c) by any local authority or any body representative of the users of the pier; or
- (d) by the Corporation;

that in the circumstances then existing the authorised rates should be revised in whole or in part the Minister if he thinks fit may make an order revising all or any of the authorised rates referred to in the application and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this subsection.

(2) An application made to the Minister under subsection (1) of this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application under subsection (1) of this section an order has been made or the Minister has decided not to make an order no further application for a revision of any of the rates to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall consult with such bodies or persons as aforesaid as appear to him to be appropriate including the Corporation where they are not the applicants and for the purpose of ascertaining such bodies or persons may require public notice of the application to be given and where an objection to an application is made by the Corporation or by any such body or person as aforesaid and is not withdrawn the Minister unless it appears to him that the objection is of a trivial nature shall cause an inquiry to be held in reference to the application.

(5) Subject to the proviso to this subsection the Minister shall not by an order under subsection (1) of this section make any such revision of the authorised rates as in his opinion would so far as can be estimated be likely to result in the annual revenue of the undertaking being insufficient or more than sufficient to enable the Corporation with efficient management of the undertaking to make adequate provision for paying all proper expenses of and connected with the working management and maintenance of the undertaking including interest on loan capital (regard being had by him to any capital which the Corporation may reasonably be expected to expend) making good depreciation providing for any contributions which the Corporation may reasonably and properly carry to any reserve fund contingency fund or sinking fund and meeting all other costs charges and expenses if any properly chargeable to revenue:

Provided that in any case where the Minister is satisfied that there are special circumstances affecting the undertaking taking into account

its financial condition during such period preceding the date on which an application is made under subsection (1) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the undertaking being insufficient to enable the Corporation to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(6) The provisions of section 16 (Inquiries by Minister) of this Order shall apply to inquiries which the Minister may cause to be held under this section.

(7) The power of the Minister to make an order under subsection (1) of this section shall be exercisable by statutory instrument.

8. The Corporation may construct and maintain on the pier and may furnish and equip fishing platforms pavilions saloons assembly concert lecture waiting refreshment reading and other rooms automatic machines bicycle-stands band-stands shops bazaars kiosks aquaria lavatories baths and sanitary and other conveniences and they may also construct under the pier head and maintain floating swimming-baths and may make such reasonable charges as they may determine for the use of such conveniences (other than urinals) and for admission to such buildings or places as aforesaid. Power to erect pavilions and other buildings.

9.—(1) The Corporation may on any special occasions but not on more than twelve days in any one year or for more than three days consecutively close the Prince of Wales Pier against the public and may on such occasions admit any persons to the said pier on payment of such special rates of admission not exceeding one shilling for each person as the Corporation may determine. Power to close pier on special occasions.

(2) On all such occasions the Corporation shall reserve a sufficient passage along the said pier between the landing steps and the shore for any persons landing or embarking at the said pier the reserved passage to be open for use by those persons at the ordinary charge and without payment of any special rates so long only as they use the said pier as a passage and do not remain upon it.

(3) The special rate charged under this section shall be in lieu of and not in addition to the rate specified in the schedule to this Order and any person paying the special rate shall not be liable to pay any further or other rate or sum for admission to the said pier on the day for which the special rate is charged.

(4) During at least two days before the day on which the said pier is to be closed the Corporation shall exhibit conspicuously at the entrance to the said pier a notice of their intention to close the said pier under this section.

10.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 to borrow without the consent of any sanctioning authority Power to borrow.

the sum requisite for the payment of the costs charges and expenses of this Order and they shall pay off any sum so borrowed within such period as the Corporation may determine not exceeding five years from the commencement of this Order.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Order shall extend and apply to the borrowing of money under this section and to money so borrowed as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of any money borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of the provisions of Part IX of the Local Government Act 1933 to the borrowing of moneys for the purposes of this Order the Minister shall be the sanctioning authority.

Receipts and
expenses.

11. Notwithstanding anything contained in any Act or Order all moneys received by the Corporation in connection with the undertaking shall be carried to and form part of the general rate fund and all payments and expenses made and incurred by the Corporation in respect of the undertaking shall be paid or transferred out of the general rate fund.

Accounts of
undertaking.

12.—(1) The Corporation shall keep their accounts in respect of the undertaking so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all receipts in respect of the undertaking (including the income from any authorised fund formed in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show the amounts representing—

- (a) the working and establishment expenses and cost of maintenance of the undertaking;
- (b) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain; and
- (f) any money expended on any of the purposes mentioned in section 13 (Application of revenue of undertaking) of this Order.

(2) The Corporation shall show in their accounts relating to the undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

13. If in respect of any year the moneys received by the Corporation on account of the revenue of the undertaking (including the interest and other annual proceeds received by the Corporation in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Corporation in respect of the undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section the Corporation (if they think fit) may in respect of that year apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (1) in reduction of capital moneys borrowed for the purposes of the undertaking;
- (2) in the renewal construction extension or improvement of any works and conveniences for the purposes of the undertaking;
- (3) in or towards any reserve fund provided in respect of the undertaking pursuant to the next succeeding section.

14.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund from time to time prescribed by the Corporation.

(2) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking; or
- (c) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) Any moneys standing to the credit of any reserve fund or contingency or depreciation fund provided by the Corporation in respect of the undertaking and in existence at the date of commencement of this Order shall be carried to and form part of any reserve fund provided under this section in respect of the undertaking.

Repeal. 15. The following provisions of the Order of 1878 and the Order of 1902 are hereby repealed namely:—

The Order of 1878—

Section 15 (Application of rates and income);

The Order of 1902—

Section 22 (Revision of rates);

Section 35 (Contingency fund);

Section 36 (Application of revenue);

Section 37 (Accounts and audit).

Inquiries by
Minister.

16. The Minister may cause to be held such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this Order and section 290 of the Local Government Act 1933 shall apply to such inquiries as if they were an inquiry held in pursuance of subsection (1) of that section.

Saving for
town and
country
planning.

17. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Order.

18. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto (as taxed by the proper officer) shall be paid by the Corporation.

SCHEDULE

PIERS TOLLS

I. <i>Rates for the use of all piers and quays—</i>		£	s.	d.
(i) Entry or exit to or from the pier (single)—				
(a) For a person under 16 years of age				2
(b) For a person 16 years or over				3
(c) For every pedal bicycle and tricycle				3
(d) For every mechanically propelled bicycle and tricycle				6
(ii) Entry and/or exit to and/or from the pier (return)—				
(a) For a person under 16 years of age				3
(b) For a person 16 years or over				4
(c) Monthly tickets for persons using the St. Mawes and Flushing services—				
(1) For a person under 16 years of age		4	0	
(2) For a person 16 years or over		8	0	
(d) For the owner master and members of the crew of any vessel embarking and/or disembarking for the purpose of boarding or landing from such vessel in respect of which rates are not payable under paragraph 1 of section III of this schedule		8	0	

Provided that no charge shall be made on—

(a) any owner master or member of the crew of or any person employed on any vessel lying alongside the pier quay or landing stage for which rates are paid under sub-paragraph (a) or sub-paragraph (b) or sub-paragraph (c) of paragraph 1 of section III of this schedule; or

(b) any owner or other person using a boat for which rates are paid under sub-paragraph (d) or sub-paragraph (e) of the said paragraph.

The charge for any entertainment held on the pier shall be in addition to these charges.

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II. *Rates on passengers' luggage etc.*—

£ s. d.

For every trunk portmanteau box parcel or package within the description of luggage and not carried by the passenger—

Not exceeding $\frac{1}{4}$ cwt. in weight	...	...	...	2
Exceeding $\frac{1}{4}$ cwt. and not exceeding $\frac{1}{2}$ cwt.	...	...	...	3
Exceeding $\frac{1}{2}$ cwt. and not exceeding 1 cwt.	...	...	...	4
For every additional cwt. or part of cwt.	...	...	...	3

STORAGE AND SHED DUES

For each ton of goods which shall remain on the piers or quays for a longer period than twenty-four hours special rates to be paid as shall from time to time be fixed by the undertakers.

For every portmanteau trunk parcel or other article of passengers' luggage for each day or part of a day per package

Bicycles

6
9

III. *Rates on vessels and boats*—

1. For every steamboat or vessel lying alongside touching or using the piers quays or landing places for any purpose other than landing or receiving cargo and whether propelled by steam oil or other mechanical power or by sails or oars—

(a) When bona fide used for towing or boarding only—

(i) per day or part of a day	...	...	...	1	6
(ii) per quarter payable in advance	...	...	...	2	5 0

(b) Passenger vessels—

(i) with registered carrying capacity not exceeding 25 persons per day or part of a day	...	...	...	4	0
(ii) with registered carrying capacity exceeding 25 and not exceeding 50 persons per day or part of a day	...	...	...	6	0
(iii) with registered carrying capacity exceeding 50 and not exceeding 100 persons per day or part of a day	...	...	...	7	6
(iv) with registered carrying capacity exceeding 100 and not exceeding 500 persons per day or part of a day	...	...	...	9	0
(v) with registered carrying capacity exceeding 500 persons per day or part of a day	...	...	...	15	0
(vi) for every rowboat per week payable in advance	...	...	...	9	
(vii) for every rowboat per quarter payable in advance	...	...	...	7	6

Table of Statutes referred to in this Act

Short title	Session and chapter
Harbours Clauses Act 1847	10 & 11 Vict. c. 27.
General Pier and Harbour Act 1861	24 & 25 Vict. c. 45.
Local Loans Act 1875	38 & 39 Vict. c. 83.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Town and Country Planning Act 1947	10 & 11 Geo. 6. c. 51.

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